

25STLC04303 25STLC04303

County: los-angeles

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Case Number: 25STLC04303 Hearing Date: July 9, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff IPFS Corporation of California's Motion for Entry of Judgment Pursuant to Settlement Agreement and General Release is granted. The proposed order for entry of judgment filed on 04/06/2026 is signed and entered this date.

Analysis:

On May 30, 2025, Plaintiff IPFS Corporation of California ("Plaintiff") filed a Complaint against Defendant Pacifica of the Valley Corporation dba Pacifica Hospital of the Valley ("Defendant") for money paid and advanced. Plaintiff alleges, inter alia, that "[w]ithin four (4) years last past, Defendants and each of them, became indebted to Plaintiff in the sum of \$14,683.28 for monies paid and advanced by Plaintiff on behalf of Defendants" (Compl., ¶ 6.) On July 23, 2025, Defendant filed an Answer.

Plaintiff filed

and served a Motion for Entry of Judgment Pursuant to Settlement Agreement and General Release, which the Court denied without prejudice on April 6, 2026. (Minute Order, 04/06/26.) The same day, Plaintiff filed the instant Motion for Entry of Judgment Pursuant to Settlement Agreement and General Release. The Motion was served on the same day via first-class mail to Defendant through Attorney Michael Newborn, Esq. To date, no opposition has been filed.

Discussion

The instant Motion is brought under Code of Civil Procedure, section 664.6, which states in relevant part:

If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(Code Civ. Proc., § 664.6, subd.

(a).) Prior to January 1, 2021, “parties” under section 664.6 meant the litigants themselves, not their attorneys.

(Levy v. Superior Court (1995) 10 Cal.4th 578, 586.) The current statute provides that “parties” includes “an attorney who represents the party” and an insurer’s agent. (Code Civ. Proc., § 664.6, subd. (b).) The settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (J.B.B. Investment Partners, Ltd. v. Fair (2014) 232 Cal.App.4th 974, 985.) The settlement agreement complies with the statutory requirements set forth above because it was signed by both parties. (Motion, Angelo Decl., Exh. A, p. 5.)

The settlement provides that

Defendant would pay Plaintiff the total amount of \$15,000.00 in three separate installment payments pursuant to the following payment schedule: (1) \$5,000.00 on or before October 1, 2025; (2) \$5,000.00 on or before November 1, 2025; and (3) \$5,000.00 on or before December 1, 2025. (Id. at Exh. A, ¶ 3.) The declaration also states that Defendant is in default under the agreement and has not cured it, allowing judgment to “be entered in favor of Plaintiff and against Defendant for the full amount of the DEBT, less credit for any payments made prior to default.” (Id. at ¶5 and Exh. A, ¶¶4, 12-13.) “Debt” is defined as \$14,683.28 in principal, interest on said amount at the rate of 16.25% per annum from December 28, 2024, \$1,600.00 contractual attorneys’ fees and \$489.50 costs. (Id. at Exh. A, p. 1.) As of the filing of the Motion, Defendant has not paid any part of the settlement. (Id. at ¶11.) Therefore, Plaintiff is entitled to judgment in the amount of \$14,683.28 (principal damages); \$3,637.21 (interest calculated at 16.25% per annum between 12/28/24 and 07/09/26); \$1,600.00 (contractual attorneys’ fees); and \$489.50 (costs). (Id. at ¶12.)

Conclusion

Plaintiff IPFS Corporation of

California's Motion for Entry of Judgment Pursuant to Settlement Agreement and General Release is granted. The proposed order for entry of judgment filed on 04/06/2026 is signed and entered this date.

Moving party to give notice.